

		close the holes with zip ties, which failed. It is undisputed that on the night of the incident, July 30, 2022, Mr. Elsaey saw a shape that entered from "the broken fence, the open fence" and he was stabbed and then hit over the head and knocked unconscious. (Plaintiff's AMF, No. 24, Ex. 10 to Plaintiffs' IOE, Deposition of Amir Elsay, Vol II, 157:8-158:16; 169:11-17; 172:12-14.) Based on the above, Plaintiff presents evidence that Premier retained control over the dirt lot for which Mr. Elsaey provided security services, and negligently repaired known holes in the fence in the dirt lot which affirmatively contributed to Mr. Elsaey's attack and injuries as the attacker entered through "the broken fence." Contrary to Premier's assertion, did not exercise authority over the premises in a manner that affirmatively contributed to Mr. Elsaey's injuries. Therefore, Plaintiffs create a triable issue of fact as to whether the retained control exception to the Privette doctrine applies. Premier's motion for summary judgment on the ground that the Plaintiffs' claims are barred by the Privette doctrine is DENIED. In light of the foregoing, the Court need not address Plaintiffs' additional arguments that other, independent exceptions to the Privette doctrine, including the negligent furnishing of unsafe equipment, and concealed hazard, apply. <i>Plaintiffs' to give notice.</i>
112	Yasuda vs. Pacific Life Insurance Company, 25-01451322	Defendant Pacific Life Insurance Company ("Defendant") moves to compel Plaintiff Gary Yasuda ("Plaintiff") to provide further responses to Form Interrogatories and Requests for Production, and for a further document production. Defendant also seeks monetary sanctions against Plaintiff and his counsel, Stephen Shuman, Walter Lack, and Engstrom Lipscolm & Lack, LLC, jointly and severally, in the amount of \$4,329.00. Based on the representations of the parties, the motion is now MOOT as to Form Interrogatories and all Requests for Production except for Nos. 34, 71, 72, 73. Sanctions also remain at issue. Pursuant to Code of Civil Procedure section 2031.310, subdivision (b)(1), a motion brought pursuant to this section "shall set forth specific facts showing good cause justifying the discovery sought by the demand." (Code Civ. Proc., §2031.310, subd. (b)(1).) "Good cause" for production of documents may be established where it is shown that the request is made in good faith and that the documents sought are relevant to the subject matter and material to the issues

		in the litigation. (<i>Associated Brewers Distributing Co. v. Superior Court</i> (1967) 65 Cal.2d 583, 588.) Once good cause is shown, the burden shifts to the objecting party, to justify his objections. (<i>Kirkland v. Superior Court</i> (2002) 95 Cal.App.4th 92, 98.) Here, Defendant has shown good cause for the requested discovery because each request for production seeks documents and things supporting allegations set forth in the Complaint. Plaintiff failed to meet his burden of justifying the objections, as Plaintiff did not address his objections at all. Accordingly, the motion is GRANTED as to requests Nos. 34, 71, 72, 73. Plaintiff shall produce further verified responses as well as the applicable production within 20 days. Plaintiff Gary Yasuda and his counsel, Stephen Shuman, Walter Lack, and Engstrom Lipscolm & Lack, LLC, are ORDERED, jointly and severally, to pay sanctions in the reduced amount of \$2,500.00 (5 hrs at \$500/hr). (Code Civ. Proc., § 2031.310, subd. (h).) Sanctions are to be paid within 30 days to Defendant's counsel. <i>Defendant to give notice.</i>